

25CHCV01943 25CHCV01943

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-15

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Case Number: 25CHCV01943 Hearing Date: July 15, 2026 Dept: F49

Dept. F49

Date: 7/15/26

Case Name: Mark Timothy Neville vs. Rachel Anne
Neville; Christopher Bradley Clark

Case No. 25CHCV01943

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 15, 2026

MOTION TO CHANGE
VENUE

Los Angeles Superior
Court Case No. 25CHCV01943

Motion filed: 2/11/26

MOVING PARTY: Plaintiff Mark Timothy Neville

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court changing the venue of the instant action to the Superior Court of California, County of San Luis Obispo.

TENTATIVE RULING: The motion is DENIED WITHOUT PREJUDICE.

BACKGROUND

This action arises from the alleged concealment of extramarital affairs conducted by Defendant Rachel Anne Neville ("Rachel") from Plaintiff Mark Timothy Neville ("Plaintiff"). On June 5, 2025, Plaintiff filed a Complaint against Rachel and Defendant Christopher Bradley Clark ("Clark") (collectively, "Defendants"), alleging the following causes of action: (1) Fraud and Intentional Misrepresentation, (2) Conspiracy to Commit Fraud, (3) Request for Judicial Determination of Non-Paternity, (4) Restitution of Child Support Paid Under False Pretenses, (5) Emotional Distress, and (6) Bigamy.

On January 13, 2026, the Court sustained Clark's demurrer to the Complaint, granting Plaintiff leave to amend his causes of action for fraud, conspiracy to commit fraud, determination of non-parentage, emotional distress, and restitution. On February 25, 2026, at the request of Plaintiff, Clark was dismissed from the action.

On February 11, 2026, Plaintiff filed the instant Motion to Change Venue (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

Except as otherwise provided, "the superior court in the county where defendants or some of them reside at the commencement of the action is the proper court for the trial of the action." (Code Civ. Proc., § 395.)

The court may, upon motion, change the place of trial when: (1) the court designated in the complaint is not the proper court, (2) there is reason to believe that an impartial trial cannot be had in the court designated in the complaint, (3) it would promote the convenience of witnesses and the ends of justice, (4) there is no judge in the court designated in the complaint qualified to act, and (5) in a proceeding for the dissolution of marriage, it would promote the ends of justice to change the place of trial to the respondent's county of residence. (Code Civ. Proc., § 397.)

“[I]n the absence of an affirmative showing to the contrary, the presumption is that the county in which the title of the action shows that it is brought is, prima facie, the proper county for the commencement and trial of the action.” (Smith v. Stanford Research Inst. (1963) 212 Cal.App.2d 750, 753.) The burden is thus on the moving party to establish the facts supporting the change of venue.

A.

Grounds for Change of Venue

Plaintiff moves to transfer this action to San Luis Obispo County, asserting that the action arose in San Luis Obispo County and “the convenience of the parties and witnesses and the interests of justice support transfer of venue” there. The foregoing ground is that articulated in Code of Civil Procedure section 397, subdivision (c).

A motion made under section 397, subdivision (c) requires that the moving party demonstrate both that the transfer will promote the convenience of witnesses and that such transfer will promote the ends of justice. (Rycz v. Supr. Ct. of San Francisco County (81 Cal.App.5th 824, 836.) “Generally, ‘the convenience of the parties is not to be considered upon a motion for change of venue.’” (Ibid.)

To demonstrate that transfer will promote the convenience of witnesses, the moving party must show that the proposed witnesses' testimony is admissible, relevant, and material to an issue in the case. (Rycz, supra, 81 Cal.App.5th, at p. 836.)

Here, however, Plaintiff's motion is not

supported by a memorandum or any affidavits establishing what witnesses are expected to testify at trial, the nature of their expected testimony, or why their attendance at a trial in Los Angeles County would be inconvenient. The Court accordingly has no basis to evaluate the merits of transfer.

Based on the foregoing, the Motion is
DENIED WITHOUT PREJUDICE.

CONCLUSION

The Court DENIES Plaintiff Mark Timothy Neville's Motion to
Change Venue without prejudice.

Moving party to give notice.

Dept. F49

Date: 7/15/26

Case Name: Mark Timothy Neville vs. Rachel Anne
Neville; Christopher Bradley Clark

Case No. 25CHCV01943

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 15, 2026

MOTION FOR LEAVE
TO FILE FIRST AMENDED COMPLAINT

Los Angeles Superior
Court Case No. 25CHCV01943

Motion filed: 1/13/26

MOVING PARTY: Plaintiff Mark Timothy Neville

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Plaintiff Mark Timothy Neville leave to file a first amended complaint against Defendants Rachel Anne Neville and Christopher Bradley Clark.

TENTATIVE RULING: The motion is DENIED WITHOUT PREJUDICE.

BACKGROUND

This action arises from the alleged concealment of extramarital affairs engaged in by Defendant Rachel Anne Neville ("Rachel") from Plaintiff Mark Timothy Neville ("Plaintiff"). On June 5, 2025, Plaintiff filed a Complaint against Rachel and Defendant Christopher Bradley Clark ("Clark") (collectively, "Defendants"), alleging the following causes of action: (1) Fraud and Intentional Misrepresentation, (2) Conspiracy to Commit Fraud, (3) Request for Judicial Determination of Non-Paternity, (4) Restitution of Child Support Paid Under False Pretenses, (5) Emotional Distress, and (6) Bigamy.

On January 13, 2026, the Court sustained Clark's demurrer to the Complaint, finding that the Complaint failed to state a cause of action as to Clark. On February 25, 2026, at the request of Plaintiff, the Court dismissed Clark from the action.

On January 13, 2026, Plaintiff filed the instant Motion for Leave to File First Amended Complaint (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

The

court may, in furtherance of justice, allow a party to amend any pleading upon any terms as may be proper. (Code Civ. Proc., §§ 473, subd. (a), 576.) Courts liberally grant leave to amend based on a strong policy favoring resolution of all disputes between parties in the same case. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939; Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Thus, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment, and the delay will cause prejudice to the opposing party if leave to amend is permitted. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

“If

discovery and investigation develop factual grounds justifying a timely amendment to a pleading, leave to amend must be liberally granted.” (Mabie v. Hyatt (1998) 61 Cal.App.4th 581, 596.)

A.

Procedural

Considerations

Plaintiff seeks leave to file a First

Amended Complaint (“FAC”) against Rachel and Clark. (Mot., at p. 2.)

A

party requesting leave to amend must state what allegations in the previous pleading are proposed to be deleted and added, as well as specify where, by page, paragraph, and line number, the changes are located. (Cal. Rules of Court, rule 3.1324(a)(1)-(3).) The moving party must also attach the proposed amended pleading to the Motion, with a declaration describing: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(b)(1)-(4).)

As a preliminary consideration, the

Court notes that Plaintiff has not complied with California Rules of Court, Rule 3.1324. While Plaintiff attaches his proposed FAC to the Motion, he does not indicate what allegations are proposed to be added or deleted. The attached FAC is neither redlined nor otherwise annotated to identify what allegations,

relative to the original Complaint, Plaintiff seeks to amend.

Plaintiff also does not submit a separate supporting declaration describing the effect of the amendment or specifying when the facts giving rise to the amendment were discovered or why the request for amendment was not made earlier. The Motion merely attaches the FAC without describing its substantive changes or their impact on the pleading. Moreover, there is no competent declaration under oath supporting Plaintiff's assertion that justice requires the amendment.

Further, although the Motion contends generally that new facts giving rise to the amended allegations were discovered "[a]fter the original complaint was filed," insufficient information is provided to allow the Court to evaluate Plaintiff's diligence.

Based on the foregoing, the Court finds the Motion to be procedurally deficient.

The Court accordingly DENIES the Motion WITHOUT PREJUDICE.

CONCLUSION

Plaintiff Mark Timothy Neville's Motion for Leave to File First Amended Complaint is DENIED WITHOUT PREJUDICE.

Moving party to give notice.